

STATE OF NEW YORK

3058--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 23, 2025

Introduced by M. of A. R. CARROLL, GALLAGHER, LEVENBERG, HYNDMAN, REYES
-- read once and referred to the Committee on Consumer Affairs and
Protection -- committee discharged, bill amended, ordered reprinted as
amended and recommitted to said committee

AN ACT to amend the general business law, in relation to promoting
consumer choice by requiring manufacturers of digital electronic
equipment to provide retail sellers with a one through ten repair
score that will be displayed to consumers at point of sale

The People of the State of New York, represented in Senate and Assem-
bly, do enact as follows:

1 Section 1. This act shall be known and may be cited as "The Electron-
2 ics Repair Scores Act".

3 § 2. Subdivision 1 of section 399-nn of the general business law is
4 amended by adding two new paragraphs (s) and (t) to read as follows:

5 (s) "Repair score" or "score" means a one through ten score calculated
6 by the manufacturer based on the repair scoring criteria developed by
7 the attorney general.

8 (t) "Detailed score" means the information regarding the calculation
9 and meaning of the repair score as defined by the scoring criteria
10 developed by the attorney general.

11 § 3. Subdivision 2 of section 399-nn of the general business law, as
12 amended by chapter 48 of the laws of 2023, is amended to read as
13 follows:

14 2. Requirements. (a) An original equipment manufacturer shall make
15 available to any independent repair provider and owner of digital elec-
16 tronic equipment manufactured by or on behalf of or sold by such
17 original equipment manufacturer, on fair and reasonable terms, any
18 documentation, parts, and tools required for the diagnosis, maintenance,
19 or repair of such digital electronic equipment and parts that are manu-
20 factured for the first time, and first sold or used in New York on or
21 after July first, two thousand twenty-three. Such documentation, parts,

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD01447-02-5

1 and tools shall be made available either directly by an original equip-
2 ment manufacturer or via an authorized repair provider. An original
3 equipment manufacturer who, in the regular course of business, offers to
4 an owner the services of diagnosis, maintenance or repair of its own
5 digital electronic equipment, and who does not have an arrangement
6 described in paragraph (a) of subdivision one of this section with an
7 unaffiliated individual or business, shall be considered an authorized
8 repair provider with respect to such equipment.

9 (b) (i) For digital electronic equipment that is sold or used in this
10 state, an original equipment manufacturer shall make available to any
11 retail sellers and the attorney general the repair score and detailed
12 score for such digital electronic equipment, inclusive of any updates to
13 information.

14 (ii) Original equipment manufacturers shall print the repair score and
15 detailed score on packaging of such digital electronic equipment, the
16 score shall include the logo representation of the score as developed by
17 the attorney general.

18 (iii) Original equipment manufacturers shall clearly display repair
19 scores for such products on their website product listing pages, as well
20 as make publicly available detailed scores to all potential purchasers
21 on each product listing page.

22 (iv) Scoring criteria will be determined by the attorney general,
23 which shall periodically update such criteria, and a logo representation
24 of scores. Scoring criteria shall include, but is not limited to: the
25 free and public availability of technical documents regarding the prod-
26 uct; ease of disassembly of the product; availability of spare parts for
27 the product; the price of spare parts for the product; length of soft-
28 ware support by the manufacturer of the product; and other criteria
29 specific to the category of the product as determined by the attorney
30 general.

31 § 4. This act shall take effect one year after it shall have become a
32 law.